

part of the north wall which time has swept away. On the cathedral, also, he expended large sums; but his works there were interrupted by his violent death.¹

SYDENHAM, RICHARD.

Just. C. P. 1388.

SOMERSETSHIRE was the native county of Richard Sydenham, who was possessed of Combe, in the parish of Monksilver, in 44 Edward III.² He was the second son of Roger de Sydenham, whose manor of that name devolved on his eldest son, John. Richard was educated as a lawyer, and is mentioned in the Year Books as early as Hilary, 50 Edward III., 1376. His name appears also in the Reports collected by Richard Bellewe. He was raised to the bench, as a judge of the Court of Common Pleas, on the impeachment of four of its members in the parliament of February, 1388, 11 Richard II.; and the fines levied before him extend to the octaves of Trinity, 1396, 19 Richard II.³ This was no doubt the period of his death; for his name does not occur afterwards, and his successor was appointed in the following July.

He married Joan, daughter and co-heir of Robert Delnigrige, of Bromfield; and was father of two sons, Henry and Simon, the latter of whom became Bishop of Chichester. From Henry, the eldest, descended a long line settled at Brimpton, in Somersetshire, some of whom represented that county in parliament. In 1641 one of them received the order of baronetcy, which became extinct, in 1739, by the death of the third holder of the title.⁴

SUFFOLK, EARL OF. *See* M. DE LA POLE.

¹ Godwin de Præsul. 117.; Josh. Barnes, 872.

² Cal. Inquis. p. m., ii. 306.

³ Dugdale's Orig. 46.

⁴ Burke's Extinct Baronetage.

TAUNTON, ARCHDEACON OF. *See* T. DE ARUNDEL.

THIRNING, WILLIAM.

JUR. C. P. 1388. CM. C. P. 1396.

See under the Reign of Henry IV.

TRESILIAN, ROBERT.

JUR. K. B. 1378. CM. K. B. 1381.

FULLER, in his "Worthies" of Cornwall, says, "there passeth a pleasant Tradition in this County, how there standeth a man of great strength and stature, with a black bill in his hand, at Polstonbridge (the first entrance into Cornwall, as you pass towards Launceston, where the Assizes are holden), ready to knock down all the Lawyers that should offer to plant themselves in that County:" and he adds "in earnest" that few of that profession there have come to any eminence. He omits Robert Tresilian as a native, partly because he is not claimed by Mr. Carew in his Survey¹: but notwithstanding the omission, there can be little doubt that he was a Cornishman. The initial syllable of his surname is presumptive evidence of the fact; but there is better proof in his principal possessions, consisting of several manors and extensive lands there²; and his appearance as an advocate at the assizes of the county in 43 Edward III., 1359³, is not without its weight in fixing his birth-place. He was educated at Oxford, and was elected fellow of Exeter College about the year 1354.

According to the Year Book he does not appear to have had any practice at Westminster till 50 Edward III., 1376, and then to no considerable extent. He appears, however, to have been a king's serjeant in the first year of Richard II.; at the end of which he was constituted a justice of the Court

¹ Fuller's Worthies, i. 212.

² Cal. Inquis. p. m., iiii. 106.

³ Liber Assisarum, 278, 279. In the first of these cases the name is Tre-vilian; and Froissart always calls him so.

of King's Bench. His appointment took place on May 6, 1378; and he sat there as the only puisne judge for four years.

He was promoted to the office of chief justice on June 22, 1381, 5 Richard II., a week after the murder of John de Cavendish¹; and the first duty to which he was called was the punishment of the insurgents. Some of the worst were those who had risen in Hertfordshire, and forcibly compelled the Abbot of St. Alban's to grant them various immunities. To that town he accompanied the king; and the mode of trial he adopted was somewhat novel. He forced one jury of twelve to present the ringleaders, according to a list previously prepared; a second jury was next empanelled, who confirmed the finding of the first; and then the same course² was adopted with a third jury. No witnesses appear to have been examined; but every party charged was condemned on the personal knowledge of these thirty-six men.³ The executions here and in other counties are described as being most numerous; and Tresilian's cruelty as having had no parallel till the campaign of Judge Jefferies three centuries afterwards. Knighton, a contemporary chronicler, states that whoever was accused before him, whether guilty or innocent, was sure to be condemned; and other writers have extended the number of the sufferers to fifteen hundred.⁴

The excited state of the country might perhaps justify some stringent proceedings; but both he and others, engaged in putting down the rebellion, seem to have been conscious that they had greatly exceeded any warrantable licence; inasmuch as, in the parliament of the following November, an act of pardon and indemnity was deemed expedient for those who had acted "without due process of the law."⁴

¹ Dugdale's Chron. Series.

² Newcome's St. Alban's, 263.

³ Barrington on the Statutes, 262.; Lingard, iv. 182.; Rapin, iv. 25.

⁴ Stat. of the Realm, ii. 20.

As it would be palpably absurd to load these pages with the technicalities of the chief justice's decisions, the relation of which belongs more to a history of the law than of its administration, it will be enough for us to refer those who are interested in them to the Reports of Richard Bellewe, who, in 1585, published a collection of the cases decided in the reign of Richard II. No complaint appears to have been made against his judicial conduct in civil matters; but in his political career he was not so fortunate. Instead of using the influence of his position to check the royal extravagance and folly, he became, by countenancing whatever was agreeable to the king, a favourite at court, and a partisan of Robert de Vere, Duke of Ireland.¹ This nobleman's ascendancy over the youthful monarch was so great, that, according to Froissart, "if he had sayd, sir, this is whyte, though it had ben blacke, the kynge wolde nat have sayd the contrarye." The effect of this misplaced confidence was soon visible in the disordered state of the revenue, and the adoption of unpopular taxes to supply its deficiencies. Not only did the people murmur, but the houses of parliament found it necessary to put a stop to the maladministration of de Vere and his associates.

One of these, the Chancellor de la Pole, was impeached in the first instance; and his conviction was followed by a statute placing the management of the state and the control of the revenue in the hands of eleven permanent commissioners, at the head of whom were the king's uncles, the Dukes of York and Gloucester. Although this commission was solemnly confirmed by the king's letters patent, dated

¹ Lord Campbell says, that he owed his appointment as chief justice to the influence of de Vere; but there is nothing to support this statement. De Vere, then Earl of Oxford, was only about fifteen when Tresilian was raised to the bench, nineteen when he was made chief justice, and was not created Duke of Ireland till six years afterwards.

November 19, 1386, the parliament was no sooner dissolved, than de Vere, and the rest of the king's friends, representing to him his dependent state, urged him to take active measures to release himself from the thralldom in which the obnoxious ordinance had placed him. The king's chief advisers, besides de Vere and Tresilian, were Alexander Neville, Archbishop of York; Michael de la Pole, the late chancellor; and Sir Nicholas Brambre, an alderman of London. After endeavouring in vain to tamper with the sheriffs of the several counties to ensure the election of subservient members for the next parliament, they summoned all the judges to a council at Nottingham, on August 25, 1387, and by violent threats compelled them to attach their signatures to a series of questions and answers, which had been already prepared by Chief Justice Tresilian, the purport of which was to declare the "new statute, ordinance, and commission to be derogatory to the royalty and prerogative of the king;" that all the persons concerned in procuring and making it were traitors, and ought to be punished with death; and that the judgment against Michael de la Pole was erroneous and revocable.

So awkwardly, however, had they concerted their plans, that the whole plot came speedily to the knowledge of the lords commissioners, who forthwith appealed the archbishop, de Vere, de la Pole, Tresilian, and Brambre of high treason. This occurred on November 17, 1387; when the king promised to summon a parliament in the following February that justice might be done. During the interval the archbishop, de Vere, and de la Pole found safety in flight; not, however, without some futile attempts on the part of de Vere to resist the commissioners by force of arms. Tresilian also in the first instance fled, and might have escaped but for his own infatuation. His place as chief justice was filled up on January 31, 1388, by the appointment of Walter de

Clopton; and on February 3, the parliament having met, the five lords who acted as appellants, viz., the Duke of Gloucester, and the Earls of Arundel, Nottingham, Derby, and Warwick, delivered in no less than thirty-nine articles of impeachment, charging the accused with encroaching to themselves royal power by enslaving the king and blemishing his prerogative; and detailing various acts in proof of their guilt. Not the least prominent among these was the constraint they had put upon the justices to set their hands to the answers to the unconstitutional questions which had been propounded to them; and their endeavours by virtue thereof to get the lords and others, who had agreed to make the ordinance in the last parliament, attainted as traitors. All of the appellees, except Brambre who was in custody, were pronounced guilty for default of appearance; and the duke, the earl, and Tresilian were sentenced to the death of traitors, and to forfeit their property to the king; the archbishop's temporalities being also taken into the king's hands.¹

Nicholas Brambre was next brought forward to undergo his trial; and while it was proceeding, Tresilian was taken and brought before the parliament. The circumstances of his capture are related with some slight variations. The king had joined the Duke of Ireland at Bristol; and being desirous of knowing what proceedings were contemplated by his uncles at Westminster, Tresilian had volunteered to undertake the perilous journey. He reached London without discovery, and taking up his lodging in an alehouse, or according to another account, at an apothecary's, opposite the palace gate, he had enconced himself in a window so that he could observe every one who passed. His disguise, however, though sufficient to mislead ordinary observers, could not deceive a squire of the Duke of Gloucester's who had

¹ Rot. Parl. iii 229—237.

been often in his company. Thinking that he recognised the chief justice, he went in and had an interview which satisfied him that he was not mistaken, although Tresilian represented himself as a farmer on Sir John Holland's estate in Kent, come up to town in order to obtain redress for some wrongs done to him by the men of the Archbishop of Canterbury. The squire, pretending to believe him, went directly to the duke, his master, by whose orders he returned with a sufficient guard, and brought the unfortunate judge before the council. His fate was not long delayed; for, after a short colloquy with the duke, he was asked what he had to say why execution should not be done according to the judgment pronounced; and becoming as one struck dumb, so that he could not answer, he was led away to undergo his sentence. Froissart says he was beheaded, and after hanged upon a gibbet; but the parliament Roll states that he was taken to the Tower, and thence drawn through the city, and hanged at Tyburn.¹

Another less credible but more particular account relates, that his wife and children, with many tears, accompanied him to the Tower, and that she fell down in a swoon overcome with grief. It describes that, in his transit from the Tower, the hurdle on which he was dragged was frequently stopped that he might confess to the friar who attended him; and that he not only refused to mount the ladder till he was forced by blows to do so, but that, when there, he declared that he should not die while he had any clothes upon him; whereupon, on being stripped, many charms were found about his person, and he was actually hanged up naked. His body was buried in the church of the Grey Friars.¹

These events, it is agreed by all, occurred on February 19, 1388, 11 Richard II.; and the attainder against him and the

¹ Froissart, ii. 285.; Holinshed, ii. 794.

² State Trials, i. 117.

others was confirmed in the same parliament. Although all these proceedings were reversed by the parliament of 21 Richard II., when the king regained his power in the state, they were again revived and confirmed on the accession of Henry IV.

The confiscation of Tresilian's property was not delayed for an instant. Two knights were immediately appointed to inquire concerning his lands and goods¹; and no less than eleven manors in Cornwall are mentioned as belonging to him, besides other extensive possessions in that county and in Oxfordshire.²

His wife Eneleine, the daughter of William Hiwishe, of Stowford, in Devonshire, seems to have soon assuaged her grief for the loss of her first husband by marrying in the following year Sir John Colshull.³ By her the chief justice left one son, named John; and a daughter, who married John Hauley, of Dartmouth. This John Hauley purchased divers of the manors of the king; and afterwards instituted a suit in Chancery against John Tresilian, who claimed an annuity of £1000 charged upon them before the attainder, being assisted in his demand by his father-in-law, Sir John Colshull, then Sheriff of Cornwall.⁴

WADHAM, JOHN.

JUR. C. P. 1558.

THE family of Wadham took its name from the place of its residence, which was in the parish of Knowston, near South Molton, in Devonshire. It had also another seat in that county, called Egges-Cumbe, now Edge, in which the judge was born. He was the son of Sir John Wadham, knight, and was educated as a lawyer. His name appears among the

¹ *Calendar of the Rolls of Richard II.*: Devon's Feud Records, iii. 236.

² *Ibid.*: *Calendar of the Rolls of Richard II.*: Devon's Feud Records, iii. 236.

³ *Ibid.*: 168, 120.

⁴ *Calendar of the Rolls of Richard II.*: *Calendar of Proceedings in Chancery*, *Devon's Feud Records*, iii. 236.

advocates in Richard Bellewe's Reports; and he was eventually made one of the king's serjeants. It is curious that his name is so introduced into Dugdale's list in 14 Richard II., two if not three years after he had been advanced to the bench. But this probably arose from the circumstance that his salary in that character was in arrear, and its payment had been delayed till that time. His appointment as a justice of the Court of Common Pleas is not recorded; but it probably took place in 11 Richard II., at the time when the court was almost cleared by the impeachment of all the judges except Sir William de Skipwith. The fines levied before him commence in the beginning of the twelfth year, 1388, and continue till about Midsummer, 1397, 21 Richard II.¹; and as beyond that year he was not summoned to parliament, he probably was then removed, or resigned. He lived till 1411—12, 13 Henry IV.²; and it is said of him "that being free of speech, he mingled it well with discretion; so that he never touched any man, how mean soever, out of order, either for sport or spight; but with alacrity of spirit and soundness of understanding, menaged all his proceedings."

His descendants, who were called of Merrifield, in Somersetshire, continued in lineal succession till Nicholas, who with his wife Dorothy, the daughter of Sir William Petre, secretary of state to Queen Elizabeth, founded the college at Oxford which bears his name, and died about 1609, leaving no issue.³

WALTHAM, JOHN DE, ARCHDEACON OF RICHMOND, SUB-DEAN OF YORK, BISHOP OF SALISBURY.

M. R. 1381. KEEPER, 1382.

FULLER makes Waltham, in Essex, the native place of this prelate; while other authors state Bishop's Waltham, in Hants,

¹ Dugdale's Orig. 46.

² Cal. Inquis. p. m., iii. 338.

³ Prince's Worthies of Devon; Collins' Peerage, vii. 273.